

Line 3

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF SANTA CLARA**

R. T., an individual,

Plaintiff,

v.

COUNTY OF SANTA CLARA, and DOES
through 25, inclusive,

Defendants.

Case No. 19CV358022

**[Tentative] ORDER GRANTING
DEFENDANTS' MOTION FOR
SUMMARY ADJUDICATION**

Before the Court is Defendant, County of Santa Clara's motion for summary judgement, or in alternative, summary adjudication. Pursuant to California Rule of Court 3.1308, the Court issues its tentative ruling.

I. Alleged Facts

According to the FAC, beginning in or about 1973, the County placed Plaintiff R.T. in foster care for approximately five years. (FAC, ¶ 21.) He was placed in the custody, care, and control of foster mom, Petra Rodriguez. Petra was approved, licensed, trained, supervised, and/or compensated by the County. (FAC, ¶22.) During his placement, Plaintiff was repeatedly sexually assaulted and abused by Petra. (FAC, ¶ 23.) Petra had care, custody, and control of multiple minors in addition to Plaintiff, including two of his siblings. (FAC, ¶ 24.) Petra sexually abused those other children, as she did Plaintiff, which was reported to the County, who placed the other children with Petra. Plaintiff's biological mother reported that Plaintiff was being sexually abused by Petra, but

1 the County failed to remove Plaintiff from the home and take remedial action, which permitted the
2 abuse to continue. (FAC, ¶ 24.)

3 Plaintiff initiated this action on June 18, 2021, and subsequently amended his complaint on
4 September 9, 2021, alleging a negligence claim against the County and a negligence claim against
5 Does 2-25.

6 **II. Legal Standard**

7 In evaluating a motion for summary judgment or summary adjudication the court
8 engages in a three-step process. The court first identifies the issues framed by the pleadings. The
9 pleadings define the scope of the issues on a motion for summary judgment or summary
10 adjudication. (*FPI Dev. Inc. v. Nakashima* (1991) 231 Cal. App. 3d 367, 381-382). Because a
11 motion for summary judgment or summary adjudication is limited to the issues raised by the
12 pleadings (*Lewis v. Chevron* (2004) 119 Cal. App. 4th 690, 694), all evidence submitted in support
13 of or in opposition to the motion must be addressed to the claims and defenses raised in the
14 pleadings. An issue that is “within the general area of issues framed by the pleadings” is properly
15 before the court on a summary judgment or summary adjudication motion. (*Lennar Northeast
16 Partners v. Buice* (1996) 49 Cal. App. 4th 1576, 1582-1583.) The court cannot consider an
17 unpleaded issue in ruling on motion for summary judgment or adjudication. (*Roth v.
18 Rhodes* (1994) 25 Cal.App.4th 530, 541.) The papers filed in response to a defendant’s motion for
19 summary judgment may not create issues outside the pleadings and are not a substitute for an
20 amendment to the pleadings. (*Tsemetzin v. Coast Federal Savings & Loan Assn.* (1997) 57
21 Cal.App.4th 1334, 1342.)

22 The court is next required to determine whether the moving party has met its burden. A
23 defendant moving for summary judgment bears the burden of persuasion that one or more
24 elements of the plaintiff’s cause of action cannot be established, or that there is a complete
25 defense to the cause of action. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal 4th 826, 850,
26 quoting Code. Civ. Proc. §437c(p)(2)). A defendant is not required to conclusively negate one or
27 more elements of the plaintiffs cause of action; (*Saelzer v Advance, Group 400* (2001) 25 Cal.4th
28 763, 780-781). Rather, to meet its burden, the defendant is required only to show that the

1 plaintiff cannot prove an element of its cause of action, i.e., that the plaintiff does not possess and
2 cannot reasonably obtain evidence necessary to show this element. (*Aguilar, supra*, at pp. 853-
3 855).

4 If the moving party meets its burden, the burden shifts to the opposing party to show that
5 a material factual issue exists as to the cause of action alleged or a defense to it. (Code Civ. Proc.
6 § 437c(p); *Bush v. Parents Without Partners* (1993) 17 Cal. App. 4th 322, 326-327). In ruling on
7 the motion, the court must consider the evidence and inferences reasonably drawn from the
8 evidence in the light most favorable to the party opposing the motion. (*Aguilar, supra*, at p. 843.)

9 **III. Request for Judicial Notice**

10 County asks the Court to take judicial notice of the Declaration of Custodian of Records,
11 Social Services Agency, and various statutes with legislative history, attached as Exhibits D, H, I,
12 J, K to Mr. Botha's declaration.

13 The Court GRANTS the request to judicially notice the statutes but DENIES judicial notice
14 of the Declaration.

15 **IV. Analysis**

16 "To succeed in a negligence action, the plaintiff must show that (1) the defendant owed
17 the plaintiff a legal duty, (2) the defendant breached the duty, and (3) the breach proximately or
18 legally caused (4) the plaintiff's damages or injuries." (*Thomas v. Stenberg* (2012) 206 Cal.App.4th
19 654, 662.) As a general matter, there is no duty to protect against the criminal conduct of a third
20 party, but an important exception exists when there is a special relationship between the plaintiff
21 and defendant. (*Barenborg v. Sigma Alpha Epsilon Fraternity* (2019) 33 Cal.App.5th 70, 76.) "[A]
22 typical setting for the recognition of a special relationship is where "the plaintiff is particularly
23 vulnerable and dependent upon the defendant who, correspondingly, has some control over the
24 plaintiff's welfare."" (*Regents of University of California v. Superior Court* (2018) 4 Cal.5th 607,
25 621.) There is no dispute that a foster child is in a special relationship with the agency that
26 provides his or her care. (See *Doe v. Los Angeles County Dept. of Children & Family Services* (2019)
27 37 Cal.App.5th 675, 683; *Doe v. United States Youth Soccer Assn., Inc.* (2017) 8 Cal.App.5th 1118,
28 1129.) Once a special relationship is established, the court must look to the factors set forth in

1 *Rowland v. Christian* (1968) 69 Cal.2d 108, to decide whether they require creating an exception
2 to the duty of care at issue. (*Brown v. USA Taekwondo* (2021) 11 Cal.5th 204, 209.) The *Rowland*
3 factors include “the foreseeability of harm to the plaintiff, the degree of certainty that the plaintiff
4 suffered injury, the closeness of the connection between the defendant's conduct and the injury
5 suffered, the moral blame attached to the defendant's conduct, the policy of preventing future
6 harm, the extent of the burden to the defendant and consequences to the community of imposing
7 a duty to exercise care with resulting liability for breach, and the availability, cost, and prevalence
8 of insurance for the risk involved.” (*Rowland, supra*, 69 Cal.2d 108 at p. 113.) “[C]ase-specific
9 foreseeability questions [and not actual knowledge of abuse] are relevant in determining the
10 applicable standard of care or breach in a particular case. They do not, however, inform our
11 threshold determination that a duty exists.” (Regents, *supra*, 4 Cal.5th at p. 630.)

12 Under *Rowland*, the court must examine whether it was foreseeable that the category of
13 negligent conduct was likely to result in the type of harm alleged. In this context, the court must
14 conclude it was sufficiently foreseeable that the failure by the County to inquire or investigate
15 when a suggested abuse had occurred makes it appropriate to impose a duty to protect.
16 Additionally, the certainty of harm factor in childhood sexual abuse, in the form of significant
17 emotional trauma, is well documented. (See, *Brown v. USA Taekwondo* (2019) 40 Cal.App.5th
18 1077, 1098.)

19 Here, Defendant contends it had no duty to protect Plaintiff from the alleged sexual abuse
20 of Petra Gonzales because (1) there is no evidence Plaintiff was legally placed in a foster home,
21 (2) it is undisputed that no court proceedings took place by which Plaintiff was placed into foster
22 care, (3) it is undisputed that Petra was Plaintiff's godmother and Plaintiff came to live with her
23 via a private, informal arrangement between his mother and Petra, and (4) it is undisputed that
24 Plaintiff's placement in Petra's home was not precipitated by abuse or neglect by his mother,
25 Maria.

26 Defendant alternately contends that even if a special relationship with Plaintiff is found,
27 no duty to protect Plaintiff arose since (1) it is undisputed that the County had no role in Plaintiff's
28 mother's decision to let Petra care for him in November 1973, (2) Plaintiff's parents, who lived

1 with Petra on and off prior and during the placement of Plaintiff, trusted her to be his godmother,
2 and (3) Petra's alleged sexual abuse was not foreseeable due to lack of history.

3 In support of its position, County submits the following evidence:

- 4 1. Exhibit B, Excerpts from Maria's deposition transcript including testimony that:
5 she met Petra in 1971 through Plaintiff's father who chose Petra to be his
6 godmother. In November 1973, she learned of a serious car accident in Mexico
7 that killed Plaintiff's father and seriously injured his younger brother Jose. As a
8 result, Maria left Plaintiff in Petra's care and made emergency travel to Mexico.
9 Petra agreed to care for Plaintiff. No one accused Maria of not being able to
10 properly care for her sons. No one accused Maria of abusing her sons. The police
11 never showed up at Maria's house. Maria did not appear in court, and no one
12 threatened to remove her sons from her custody. She never went through any
13 governmental process by which her sons were placed in Petra's care. She did not
14 receive or sign any documents from court. Similarly, she did not have to go
15 through any legal proceedings or sign any documents for the return of her sons.
16 There was no investigation into her ability to care for her children. (Maria Depo.
17 pp 42:16-24, 44:11-12, 53:14-56, 115:16-116:10, 73:1-12, 113:24-114:4;
18 182:22-25, 181:15-182:18; Statement of Undisputed Material Facts ("SUMF")
19 Nos. 1, 3, 5, 12, 13)
- 20 2. Exhibit C to Botha's declaration – Plaintiff's Responses to Request for Production
21 Nos. 41, 45, 48; and SUMF 14.
- 22 3. Exhibit D to Botha's declaration – Clerk's affidavit in the matter of R.T. and SUMF
23 15, which certifies no documents pertaining to Plaintiff were found in
24 Department of Family & Children's Services, Social Services Agency, for the
25 County of Santa Clara.
- 26 4. Exhibit E to Botha's declaration – Plaintiff's Responses to Special
27 Interrogatories, set one.
- 28 5. Exhibit F to Botha's declaration – excerpts from deposition of Guadalupe Avila.
6. Exhibit G to Botha's declaration – Plaintiff's Responses to Special
Interrogatories, set two.
7. Exhibit H to Botha's declaration - correct copy of California Statutes, Chapter
1068 of 1976, which enacted Welfare and Institutions Code section 328 that
took effect on January 1, 1977, downloaded from the public website of the
California State Assembly, Office of the Chief Clerk, at:
<https://clerk.assembly.ca.gov/historical-information/archive-list/statutes->

and-amendments-codes-1976?field_archive_type_value=Statutes.

8. EXHIBIT I to Botha's declaration - correct copy of California Statutes, Chapter 1068 of 1976, which enacted Welfare and Institutions Code section 300 that took effect on January 1, 1977, downloaded from the public website of the California State Assembly, Office of the Chief Clerk, at: https://clerk.assembly.ca.gov/historical-information/archive-list/statutes-and-amendments-codes-1976?field_archive_type_value=Statutes.
9. EXHIBIT J to Botha's declaration - correct copy of California Statutes, Chapter 69 of 1968, which enacted Welfare and Institutions Code section 16504 that took effect as of January 1, 1973, downloaded from the public website of the California State Assembly, Office of the Chief Clerk, at: https://clerk.assembly.ca.gov/historical-information/archive-list/statutes-and-amendments-codes-1968?field_archive_type_value=Statutes
10. EXHIBIT K to Botha's declaration - correct copy of Chapter 1203 of 1973, which enacted Health and Safety Code section 1522 that took effect on January 1, 1974, downloaded from the public website of the California State Assembly, Office of the Chief Clerk, at: https://clerk.assembly.ca.gov/historical-information/archive-list/statutes-and-amendments-codes-1973?field_archive_type_value=Statutes.
11. Declaration of Dana Foster (custodian of record for County of Santa Clara Department of Family and Children's Services) and SUMF 16 -attesting she was unable to locate any records pertaining to Plaintiff either because no records existed or have been purged due to age.
12. Declaration of Mike Simms (custodian of Records for the County of Santa Clara Department of Probation) - attesting he was unable to locate any records pertaining to Plaintiff either because no records existed or have been purged due to age.
13. Declaration of Fattima Contreras (custodian of Records for County of Santa Clara personnel records) attesting there are no records showing Toni Bias is or has ever been the County's employee.
14. Declaration of Guadalupe Avila (retired social worker) attesting she began working for the County of Santan Clara on June 30, 1975, until December 15, 1986. She did not work with anyone named Toni Bias and does not recognize the name. She received extensive training in how to deal with abused children. In the 1970s-time frame, if she had received a report of suspected child abuse,

1 she would have reported it to law enforcement, to foster parent licensing, to my
2 supervisor, and to any social workers for other children in the home. She would
3 never have ignored the report of suspected abuse. She would never have simply
4 reassured the reporting party that “everything is all right,” without taking
immediate action to protect the child.

5 15. Exhibit A, Excerpts from Deposition transcript of R.T. testifying: He never
6 appeared in court and never saw any court documents about placement in the
foster home. (R. T. Depo pp 91:14-19, 91:23-92:5; SUMF 12.)

7 Based on the above evidence, no documentary evidence of a foster care placement exists—
8 not from the Court, not from the County, and not from Plaintiff. In addition, the required attributes
9 of such a placement— removal from biological parents due to abuse or neglect, juvenile court
10 proceedings, and notice to the mother of ongoing court hearings—are entirely absent here. And an
11 informal arrangement between Plaintiff’s parent and Plaintiff’s godmother does not create a special
12 relationship and/or an enforceable legal duty by the County. (See, *Maggie S. v. Super. Ct.* (2013) 220
13 Cal.App.4th 662, 666, 672; *In re Kerns’ Guardianship* (1946) 74 Cal.App.2d 862, 868.)

14 The burden thus shifts to Plaintiff to establish Defendant’s duty. In support of its argument
15 that County had a duty to protect, Plaintiff submits the following evidence:

- 16 1. Exhibit 1 to Lafrades declaration – excerpts from Plaintiff’s deposition.
- 17 2. Exhibit 2 to Lafrades declaration – excerpts from Sylvia Mariscal’s deposition
18 wherein she testifies: Plaintiff’s parents lived in the back of their house prior
19 to the accident that killed Plaintiff’s father in November of 1973.
20 Immediately after the accident, Plaintiff’s mother (Maria) left Plaintiff with
21 Petra to go to Mexico. After the accident, Maria sent Plaintiff’s younger
22 brother, Jose, to Petra to care for. After coming back from Mexico, Maria lived
23 in Petra’s house with her sons for approximately one year. She then moved
24 out leaving her son Cesar to be cared for by Petra. Petra helped raise a lot of
25 children in her home and there were other children in her house in addition
26 to Plaintiff and his brothers. Silvia was a 14-year-old single mom at the time
27 and lived in Petra’s house. She was homeschooled and helped her mother
28 with the care of Plaintiff and his brothers. In 1973 and shortly after Petra’s
passing, she saw some paperwork that had her parents name as foster
parents and the name of Plaintiff and his brothers. However, she did not read
this document. In 1973, social worker Toni Bias would take Plaintiff and his
brothers out to movies and parks 2-3 times a week. Social worker Guadalupe
Avila starts coming to their house about a year after and she would visit once

1 every 2-3 months. Ms. Avila would talk to Petra, Plaintiff and Maria (when
2 she was present in the house). She didn't know what was discussed because
3 she had to leave the room with the other kids. After Maria moved out of their
4 house, she would come to the house and take the children for the weekend.
5 In May 1978, Maria just came to the house and without any prior notice or
6 discussion, took her sons without returning them. She was mostly in charge
7 of caring for and bathing Plaintiff and his brothers because her mother had
8 health issues. She never saw her mother physically or sexually abuse
9 Plaintiff. Maria never complained to her that the boys were abused. She
10 doesn't know if her parents were certified foster parents because she didn't
11 see any paperwork. Maria left the children with Petra because she was their
12 godmother. (Sylvia Mariscal's Depo. Pp. 32, 33:19-24, 35, 38-39, 41, 42, 45-
13 46, 48, 54, 60, 74, 74, 77, 79, 158, 173.)

14 3. Exhibit 3 to Lafrades declaration – excerpts from Maria Topete deposition.

15 4. Exhibit 4 to Lafrades declaration – County's Responses to Request for
16 Documents, set one.

17 Plaintiff contends lack of documentation establishing County's legal custody and placement
18 of Plaintiff in Petra's foster care are irrelevant considering Mariscal's testimony that she saw some
19 paperwork that included Plaintiff's name and referred to her parents as foster parents. Plaintiff adds
20 that Plaintiff's mother could have received legal and court documents, which she would not have
21 recognized since she did not speak or read English.

22 Plaintiff's arguments and evidence are insufficient to satisfy their burden. Plaintiff does not
23 dispute that his mother voluntarily placed him in Petra's care, nor does he dispute that she
24 voluntarily removed him from her care five years later. Plaintiff does not dispute that a County-
25 supervised foster placement is a formal legal process governed by statutes and regulations. Plaintiff
26 does not dispute that, among other legal requirements, a County-supervised foster placement is
27 precipitated by abuse or neglect of a minor. (Plaintiff's Response to SUMF Nos. 2-3, 10, 11.) Nor does
28 Plaintiff present any evidence negating County's evidence showing it never hired Toni Bias and
Guadalupe Avila did not begin her employment until June 30, 1975.

Speculating that Plaintiff's mother could have received legal documents cannot create a
triable issue of fact because speculation is not evidence. (*McHenry v. Asylum Ent. Delaware, LLC*
(2020) 46 Cal.App.5th 469, 479.) Similarly, speculation that some paperwork (content unknown)

1 that bore Plaintiff's name and referred to Petra and her husband as foster parents was a legal
2 document is insufficient to create a triable issue. Plaintiff's speculation that the legal process
3 happened, based on Plaintiff's mother's and Mariscal's informal, sparse references to "foster care,"
4 is also insufficient to create a triable issue of material fact where the record contains undisputed
5 evidence that Plaintiff came to live with Petra via an informal agreement between his mother and
6 godmother.

7 On summary judgment, once the defendant makes a prima facie showing negating an
8 element of the plaintiff's cause of action, "[t]he plaintiff must produce substantial responsive
9 evidence sufficient to establish a triable issue of fact. Responsive evidence that gives rise to no more
10 than mere speculation cannot be regarded as substantial and is insufficient to establish a triable
11 issue of material fact." (*Granadino v. Wells Fargo Bank, N.A.* (2015) 236 Cal.App.4th 411, 415,
12 internal citation omitted.)

13 Based on the foregoing, the Court concludes County did not have a special relationship with
14 Plaintiff and thus no duty to protect him from Petra's alleged sexual abuse. It is unnecessary for the
15 Court to further analyze and address County's immunity and knowledge of Petra's alleged sexual
16 assault propensity. Additionally, as to the County's mandatory duty pursuant to Welfare & Institute
17 Code §§ 328, 16504, and Health & Safety Code § 1522, it is undisputed that County did not violate
18 these laws.¹ (Plaintiff's Response to SUMF Nos. 48-50.)

19 Accordingly, Defendant's motion for summary judgment is GRANTED.
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23 Date: _____

24 Hon. Evette D. Pennypacker
25 Santa Clara Superior Court Judge
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28

¹ Pursuant to February 8, 2022, Stipulation and Order, allegations based on Welf. & Inst. Code §16501(f), Penal Code sections, and Child Welfare Services Manual section were stricken from the first amended complaint.

Line 5

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF SANTA CLARA**

TBF FINANCIAL I, LLC, limited liability
company,

Plaintiff,

v.

LEGEND LEARNING AND FAMILY RESOURCE
CENTER, INC., corporation; and DOES
through 50, inclusive,

Defendants.

Case No. 23CV427050

**[Tentative] ORDER RE
DEFENDANT'S MOTION FOR
SUMMARY JUDGMENT**